

25AVCV01726 25AVCV01726

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-06-23

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Case Number: 25AVCV01726 Hearing Date: June 23, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

BARON WETTERLIND,

Plaintiff,

v.

ANTELOPE VALLEY MEDICAL CENTER; ANTELOPE VALLEY HEALTHCARE DISTRICT; MARK W. SMITH MD; VAHEH SHIRVANIAN, MD; and DOES 1 TO 50, inclusive,

Defendants.

Case Number 25AVCV01726

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

June 23, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a medical malpractice action. Plaintiff Baron Wetterlind ("Plaintiff") alleges that on January 6, 2025, Plaintiff was admitted to the Antelope Valley Medical Center facility ("Defendant"). During his stay, Plaintiff alleges he sustained unexplained injuries while being physically and mentally incapacitated. Plaintiff further alleges suffering severe deconditioning due to inadequate care.

On December 30, 2025, Plaintiff filed his Complaint alleging Medical Negligence and Medical Malpractice.

On February 20, 2026, Plaintiff filed the instant motion seeking relief from Government Code section 945.4.

On June 5, 2026, Defendant filed its Opposition.

On June 11, 2026, Plaintiff filed a Reply.

II. Legal Standard

Standard for Judicial Relief from Claims Presentation – Government Code section 946.6 provides that "[i]f an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4 [requiring a claim to be presented to a public entity before an action may be brought against the public entity]." (Gov. Code § 946.6(a).) The petition must be filed within six months after the application to the board is denied. (Gov. Code, § 946.6(b).) The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds (1) the application to the board was made within a reasonable time not to exceed that specified in Section 911.4(b); (2) was denied or deemed denied pursuant to Section 911.6; and (3) that one or more of the enumerated reasons applies. (Gov. Code, § 946.6(c).) The enumerated reasons include (1) the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if relief is granted; (2) the person who sustained the alleged injury or loss was a minor during the time the claim was to be presented; (3) the person who sustained the alleged injury or loss was physically or mentally incapacitated during the time the claim was to be presented; and (4) the person who sustained the alleged injury or loss died before the expiration of the time to present the claim. (Ibid.) Where no testimonial evidence is offered with respect to a delay in filing a claim against a county, the court may decide whether to grant relief on the basis of the petition and declarations offered in support of, or in opposition to, the petition. (Gov. Code, § 946.6(e).)

Government Code section 911.4(b) provides that an application to the board to present a late claim must be made within one year after the accrual of the cause of action.

III. Discussion

Application – Plaintiff alleges that on November 13, 2025, when preparing the required notice of intent to commence action, Plaintiff's counsel discovered that Defendant is affiliated with the Antelope Valley Healthcare District, a public locally governed entity. (Motion, p. 3.) On December 22, 2025, Plaintiff's counsel received a letter from Defendant informing Plaintiff that the notice of intent to commence action was not filed within 6 months of claim accrual, and Plaintiff must therefore apply

for leave to present a late claim pursuant to section 911.2. (Motion, p. 4.) On December 23, 2025, Plaintiff's counsel served the board of the Antelope Valley Medical Center ("the Board") with a request for leave to file a late claim. (Motion, p. 4.) Plaintiff states that the request was denied on January 29, 2026, nearly a month after Plaintiff filed the Complaint.

Plaintiff argues that he has met his burden under Government Code section 946.6 as (1) he presented a late claim and it was denied; (2) he has sufficiently stated the reason for failing to present the claim was mistake and excusable neglect, per Section 946.6(c)(1); (3) his petition contains all the information required by Section 910, and (4) the petition was filed within six months of rejection pursuant to Section 946.6 subdivision (b). (Motion, pp. 6-9.)

Plaintiff provides both the request for leave to file a late claim and the letter from the Board denying the request. (Rashtian Decl., Exhibits A-D, Exh. C-D.) Defendant does not dispute the request was made and denied. Thus, Plaintiff has established that the late claim request was denied.

However, Defendant challenges the sufficiency of Plaintiff's stated reason for delay in presenting the claim. Defendant argues that Plaintiff's has not shown through evidence that the delay was caused either by incapacity or lack of notice. (Opposition, p. 1.) Defendant argues that their website explicitly states that they are part of a healthcare district and that healthcare districts are public entities. (Opposition pp. 1-2.) Defendant argues that this reflects a lack of research for readily accessible information rather than surprise, inadvertence, or mistake. (Opposition, pp. 2, 10-11.) Further, Defendant argues that Plaintiff's statements regarding physical and mental incapacitation are conclusory and unsupported. (Opposition, pp. 4, 8-9.) Defendant argues that because Plaintiff has failed to meet his burden of proof, Plaintiff cannot be relieved from the requirements of section 945.4. (Opposition, p. 12.)

In Reply, Plaintiff argues that failure to discover that Defendant was associated with a locally governed healthcare district because of reliance on medical records which fail to disclose that information is reasonable grounds for mistake, inadvertence, surprise, or excusable neglect. (Reply, p. 2.) Plaintiff argues that they are not obligated to review Defendant's website, and nothing put them on notice to search for that information. (Reply, p. 4.) Further, Plaintiff argues that Defendant's home page does not produce the proffered screen shot and requires navigating through pages of the website. (Rashtian Decl., ¶¶2-8, Ex. A.) Finally, Plaintiff argues that Defendant's focus on the incapacity issue is misplaced; Plaintiff's Motion was based only on Section 946.6(c)(1) (Motion, at 6.)

Here, plaintiff has shown that failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect. Plaintiff argues and Defendant concedes, that official records from Defendant's medical facility don't mention their association with a healthcare district. (Rashtian Decl., Ex. E.) Moreover, the page identifying Defendant as a healthcare district requires navigating away from the homepage as evidenced by the URL and screenshot of the webpage offered by Defendants. (Frausto Decl., Exh. B.) Although it is available information, Plaintiff has shown that they failed to discover this information through mistake and reliance on official records which do not identify Defendant as a healthcare district. Plaintiff has shown that failure to discover the information was through excusable neglect. Thus, Plaintiff has provided sufficient reason for the delay under Section 946.6(c).

Government Code section 910 requires that a person presenting a claim include: the name and post office address of the claimant; the post office address to which the person presenting the claim desires notices to be sent; the date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted; and a general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim. (Gov. Code, § 910.) The claim Plaintiff presented to the Board includes the information required by Section 910. (Rashtian Decl., Exh. C.) Defendant does not dispute that the claim presented contained the required information. Thus, Plaintiff has established that the petition includes the necessary information under section 910.

Government Code section 946.6 subdivision (b) provides that the petition shall be filed within six months after the application to the board is denied. (Gov. Code, § 946.6(b).) Plaintiff's petition was filed within 6 months of the request rejection. (Rashtian Decl., Exh. B-C.) Defendant does not dispute that the petition was filed in a timely manner. Thus, Plaintiff has established the petition was filed within six months of rejection pursuant to section 946.6 subdivision (b), and, as the Court previously has noted, Plaintiff has established the grounds for granting the Petition under Section 946.6(c).

Therefore, Plaintiff has established required elements for relief from section 945.4.

Defendant has not shown it would be prejudiced.

Accordingly, the Motion is GRANTED.

IV. Conclusion

Plaintiff Baron Wetterlind's Motion for Relief from Provisions of Government Code Section 945.4 is GRANTED.